

ORDER SHEET
IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT
Criminal Miscellaneous No. 1703-B of 2026

Muhammad Arshad.

Versus

The State.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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17.06.2026. Ms. Nazia Bibi Abbassi, Advocate for the petitioner.
Mr. Muhammad Zaheer Arshad, Assistant Attorney General for Pakistan with Sadia Saba, Inspector FIA.
Complainant in person.

The petitioner (**Muhammad Arshad**), being arrayed as an accused in case F.I.R. No. 74/2023, dated 06.07.2023, registered with Police Station FIA/AHTC, Rawalpindi, for offences under Sections 3 & 6 PSMA read with Section 18 & 22 of the Emigration Ordinance, 1979 , seeks his post arrest bail, after the same was refused to him by the court of learned Special Judge Central, Rawalpindi, vide order dated 25.03.2026.

2. It was borne out of the record that petitioner was refused post arrest bail earlier on merits by the learned trial court through order dated 28.02.2025. Thereafter, he approached this Court and his post arrest bail was declined vide order dated 17.04.2025 passed in Criminal Miscellaneous No.1692-B of 2025.

3. In the second round petitioner again knocked the door of learned trial court and sought bail on the ground of statutory delay in the conclusion of trial, but his application was turned down vide order dated 25.03.2026, hence the present petition.

4. Learned counsel for the petitioner mainly focused on the points that petitioner was arrested on 01.12.2024 and report under Section 173 of Cr.P.C. was submitted after sixteen months of the arrest of petitioner; charge in the case was framed on 25.03.2026, but even not a single witness was recorded so far; above delay on the part of investigation agency was not attributable towards the petitioner, as such he has earned a valuable right to be released on bail without touching the merits of the case.

5. Conversely, the learned Assistant Attorney General for Pakistan opposed present petition rigorously on multiple grounds; further added that petitioner and his companions deprived the complainant of huge amount of Rs.25,00,000/- for sending his son to Italy for job purpose; next contended that although son of the petitioner was sent from Karachi Airport to Libya via Dubai and Qaira from where accused persons sent the son of complainant to Italy through their agent living at Libya in June, 2023, where boat capsized, resulting into the death of hundreds of people including Pakistanis; son of the petitioner

could not be traced out so far, as such petitioner, being a hardened and desperate criminal, was not entitled to be released on bail despite of the fact that he has completed the period of more than one year in the detention.

6. Arguments heard. File perused.

7. There is no cavil to the fact that petitioner has been behind the bars for a continuous period of more than one year. Normally an accused of such offence has to be released on bail after passing the period of more than one year in the detention under 3rd proviso to sub-section 1 of Section 497 of Cr.P.C., but said release is not an automatic process. He shall not be so released, where the Court is of the opinion that the delay has been caused by the accused or any other person acting on his behalf, or he has been convicted for an offence punishable with death or imprisonment for life, or in the opinion of the Court he is found to be a hardened, desperate or a dangerous criminal. The Court may also take into consideration the gravity and severity of the offence alleged against the accused and mode and manner adopted by him for the commission of offence for declaring him as hardened and desperate criminal.

8. In the case in hand son of the complainant was sent by petitioner and his companions from Karachi to Libya, thereafter, he was not heard of. His whereabouts could not be traced out so far. Possibility cannot be ruled

out that son of the complainant also met his death along with hundreds of the people, who passed away in the boat capsizing incident while going to Italy. In our country such like incidents are increasing day by day. The people who deprive the others of their hard-earned money showing vegetable garden on the pretext that they would be provided lucrative job in the foreign country commit the financial murder of the innocent persons. They are hardly entitled to any leniency. Mode and manner adopted by petitioner and his companions for the commission of offence was presenting a dreadful picture, which was sufficient to brand them as hardened and desperate criminal. Therefore, I do not think it appropriate to exercise my discretion in favour of the petitioner.

9. For what has been discussed above, present petition has no force, hence **dismissed**.

10. Needless to mention that any observation made in this order is tentative in nature and shall not influence the learned trial court in any manner.

(TANVEER AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

JUDGE